

Sri. Vinay Kumar @ Krishna Prasad vs Smt. Harshitha B N on 8 March, 2018

Author: Vineet Kothari

Bench: Vineet Kothari

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IN THE HIGH COURT OF KARNATAKA, BENGALURU

DATED THIS THE 08th DAY OF MARCH 2018

BEFORE

THE HON'BLE Dr.JUSTICE VINEET KOTHARI

WRIT PETITION No.5447/2018 (GM-FC)

BETWEEN:

SRI. VINAY KUMAR @ KRISHNA PRASAD
S/O K.M. RAMAKRISHNA
AGED ABOUT 33 YEARS
R/AT. WARD NO.25
1ST CROSS, JALAMANGALA ROAD
MANJUNATHANAGARA
RAMANAGARA TOWN
RAMANAGARA DISTRICT-562159.

... PETITIONER

(By Mr. DODDATHAMME GOWDA, M.L. ADV., (ABSENT))

AND:

SMT. HARSHITHA B.N.
W/O VINAY KUMAR
AGED ABOUT 27 YEARS
R/AT. NO.4037, 5TH CROSS
10TH MAIN, GAYATHRINAGAR
BANGALORE-560021.

... RESPONDENT

(By Mr. SANTOSH RAJ URS, ADV.,)

THIS W.P. IS FILED UNDER ARTICLES 226 & 227 OF THE
CONSTITUTION OF INDIA PRAYING TO CALL FOR RECORDS.
QUASH THE ORDER PASSED BY THE LEARNED IV ADDITIONAL
PRINCIPAL JUDGE, FAMILY COURT AT BANGALORE ON I.A.NO.3

DATED 08.01.2018 IN M.C.NO.5315/2014 VIDE ANNEXURE-B &
ETC.,

Date of Order 08-03-2018 W.P.No.5447/2018
Sri. Vinay Kumar @ Krishna Prasad Vs. Smt. Harshitha B.N.

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THIS W.P. COMING ON FOR PRELIMINARY HEARING THIS
DAY, THE COURT MADE THE FOLLOWING:-

ORDER

Mr. Doddathamme Gowda M.L. Adv. for Petitioner (Absent) Mr. Santosh Raj Urs, Adv. for Respondent

1. None present for the petitioner. Perused the record.
2. The petitioner-Husband has filed this writ petition under Article 227 of the Constitution of India against the Respondent-wife Ms.B.N.Harshitha, aggrieved by the order passed by the learned Family Judge, Bengaluru, on 08.01.2018 granting interim maintenance in favour of the applicant-wife u/S.24 of the Hindu Marriage Act, 1955, to the extent of Rs.5,000/- per month from the date of filing of the M.C.petition and litigation expenses to the extent of Rs.10,000/-.
3. The operative portion of the order impugned is quoted below for ready reference:-

Date of Order 08-03-2018 W.P.No.5447/2018 Sri. Vinay Kumar @ Krishna Prasad Vs. Smt. Harshitha B.N. "I.A. No.3 filed U/sec.24 of Hindu Marriage Act by the petitioner is allowed in part.

The respondent is hereby directed to pay a sum of Rs.5,000/- per month as an interim maintenance to the petitioner from the date of this petition during pendente lite and also pay a sum of Rs.10,000/- towards litigation expenses.

Sd/-

II Addl. Prl. Judge".

4. The only ground raised in the present writ petition in para-13 of the memo is that the petitioner is unable to pay the monthly maintenance as directed by the trial Court, since the monthly income is too meager and he is struggling to maintain himself and his aged parents.
5. No details of his monthly income with relevant evidence has been adduced before this Court or before the Court below. Otherwise, the amount awarded by the learned Court below appears to be rather on the lower Date of Order 08-03-2018 W.P.No.5447/2018 Sri. Vinay Kumar @ Krishna Prasad Vs. Smt. Harshitha B.N. side and cannot be said to be excessive, by stretch of imagination.

The said order therefore does not require interference by this Court under Article 227 of the Constitution of India.

6. The writ petition is therefore liable to be dismissed and the same is dismissed accordingly. No costs.

Copy of this order be sent to the Respondent and the learned Court below forthwith.

Sd/-

JUDGE Srl.